legislative assemblies of states and the Union Territories of Delhi and Puducherry do not participate in the impeachment of the President though they participate in his/her election.

It must be noted here that no President has so far been impeached.

 **Vacancy in the President's Office**

A vacancy in the President's office can occur in any of the following ways:

1. On the expiry of his/her tenure of five years.
2. By his/her resignation.
3. On his/her removal by the process of impeachment.
4. By his/her death[7].
5. Otherwise, for example, when he/she becomes disqualified to hold office or when his/her election is declared void.

When the vacancy is going to be caused by the expiration of the term of the sitting President, an election to fill the vacancy must be held before the expiration of the term. In case of any delay in conducting the election of new President by any reason, the outgoing President continues to hold office (beyond his/her term of five years) until his/her successor assumes charge. This is provided by the Constitution in order to prevent an 'interregnum'. In this situation, the Vice-President does not get the opportunity to act as President or to discharge the functions of the President.

If the office falls vacant by resignation, removal, death or otherwise, then election to fill the vacancy should be held within six months from the date of the occurrence of such a vacancy. The newly-elected President remains in office for a full term of five years from the date he/she assumes charge of his/her office.

When a vacancy occurs in the office of the President due to his/her resignation, removal, death or otherwise, the Vice-President acts as the President until a new President is elected. Further, when the sitting President is unable to discharge his/her functions due to absence, illness or any other cause, the Vice-President discharges his/her functions until the President resumes his/her office.

In case the office of Vice-President is vacant, the Chief Justice of India (or if his/her office is also vacant, the seniormost judge of the Supreme Court available) acts as the President or discharges the functions of the President[8].

When any person, ie, Vice-President, chief justice of India, or the seniormost judge of the Supreme Court is acting as the President or discharging the functions of the President, he/she enjoys all the powers and immunities of the President and is entitled to such emoluments, allowances and privileges as are determined by the Parliament.

POWERS AND FUNCTIONS OF THE PRESIDENT

The powers enjoyed and the functions performed by the President can be studied under the following heads: